

Gogineni Naga Venkata Satya Pavani vs Gogineni Lakshmi Prasad Babi on 20 June, 2025

i

IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

FRIDAY, THE TWENTIETH DAY OF JUNE
TWO THOUSAND AND TWENTY FIVE

PRESENT

HONOURABLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 113 OF 2025

Between:

Gogineni Naga Venkata Satya Pavani, W/o Lakshmi Prasad, aged 40 years,
Housewife R/o D.No.8-6-12/1, Benaraju Peta, Eluru, Eluru District, Erstwhile
West Godavari District.

...PETITIONER

AND

Gogineni Lakshmi Prasad @ Babi, S/o Goplala Rao, R/o D. No. 1-63,P
urushothapatnam, Gannavaram Mandal, Krishna District.

...RESPONDENT

Petition Under Section 24 of the C.P.C, Praying that in the
circumstances stated in the affidavit filed therewith, the High Court may be
pleased to order withdrawal of F.C.O.P. No. 199 of 2025 pending on the file
of the court of Hon'ble XIV Additional District and Sessions Judge-cum-
Hon'ble Principal Family Judge, Vijayawada and transfer the same for trial
and disposal to the Court of Hon'ble Family Judge, Eluru for trial and

disposal in accordance with law

LA NO: 1 OF 2025

Petition under Section 151 CPC, praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings in F.C.O.P. No. 199 of 2025 on the file of the Court of Hon'ble XIV Additional District and Sessions

Judge-cum-Principal Family Judge, Vijayawada, pending disposal of the present Transfer C.M.P

LA NO: 2 OF 2025

Between:

Gogineni Lakshmi Prasad @ Babi, S/o Goplala Rao, R/o D. No. 1-63,P
urushothapatnam, Gannavaram Mandal, Krishna District.

...PETITIONER

AND

Gogineni Naga Venkata Satya Pavani, W/o Lakshmi Prasad, aged 40 years.
Housewife R/o D.No.8-6-12/1, Benaraju Peta, Eluru, Eluru District, Erstwhile
West Godavari District.

...RESPONDENT

Petition under Section 151 CPC, praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to vacate stay orders passed in I.A. No; 1/2025 in Tr.CMP No; 113 /2025 dated on 03-04-2025 and on considering the contentions of the

respondent may be pleased to dismiss the TRCMP filed by the petitioner

7

Counsel for the Petitioner : M/s NIMMAGADDA REVATHI

Counsel for the Respondent: SRI P.SRINIVAS

The Court made the following:

1

/

THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No. 113 of 2025

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short 'the C.P.C.') seeking to withdraw F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District and transfer the same to the Judge, Family Court at Eluru, West Godavari District, for trial.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and the marriage of the petitioner with the respondent was solemnized on 11.08.2013, at Kottapalli Village, Lingapalem Mandal, as per the Hindu Rites and Caste Customs. Due to their wedlock period, the petitioner/wife and the respondent/husband were blessed with a female child and later, due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately along with her daughter at her parents' house at Eluru, West Godavari District.

The petitioner/wife further pleaded that she filed a Domestic Violence Case vide D.V.C.No.53 of 2024 on the file of the III Additional Junior Civil Judge-cum-Judicial Magistrate of First Class, Eluru, under Section 12 of Domestic Violence Act, 2005, the same is pending for ^ VGKR, J Tr.C.M.P.No.113 of 2025 2 Dated 20.06.2025 adjudication. She further pleaded that to to her, the cause unnecessary inconvenience respondent/husband had filed F. C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District, under Section Act, 1955, seeking restitution 9 of the Hindu Marriage of conjugal rights and the same is also pending for adjudication.

The petitioner/wife further pleaded that, she being a woman, residing separately along with her daughter and also depending upon the mercy of her parents at Eluru, West Godavari District i her to travel at . it is very difficult for a distance of more than 50 Kms from Eluru attend the case to Vijayawada to proceedings on each male assistance and that she i and every adjournment without any 'S constrained to file the present petition seeking withdrawal of F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-

Vijayawada, Krishna cum-Principal Family Judge, District and transfer the same to the Judge, Family Court at Eluru, West Godavari District.

3- Learned counsel for the respondent would contend that there are no valid grounds to consider the request made by the petitioner/wife and he further submits that appropriate orders may be passed in the present petition.

4. Heard learned counsel appearing on both sides on record. 5- Perused the material available on record.

VGKR, J Tr.C.M.P.No.113 of 2025 Dated 20.06.2025

6. The material on record prima facie goes to show that the petitioner/wife has been residing separately along with her daughter at her parents' house at Eluru, West Godavari District and she also filed a Domestic Violence Case against the respondent/husband vide D.V.C.No.53 of 2024 on the file of the III Additional Junior Civil Judge-cum-Judicial Magistrate of First Class, Eluru, under Section 12 of Domestic Violence Act, 2005, the same is pending for adjudication. The material on record further reveals that the respondent/husband has instituted a case i.e., F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights and the same is also pending for adjudication.

7. The Apex Court in a case of N.C.V. AISHWARYA VS A.S. SARAVANA KARTHIK SHA\ held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under 12022 LiveLaw (SC) 627 VGKR, J Tr.C.M.P.No.113 of 2025 Dated 20.06.2025 whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

8. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down by the aforesaid case law and on considering the facts and circumstances of the case that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking to withdraw F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District and transfer the same to the

Judge, Family Court at Eluru, West Godavari District. Further, on considering the submissions made by the learned counsel for the respondent that the respondent/husband herein is an employee working as an Administrative Officer in Sri Chiatanya College, Gannavaram and therefore, it is desirable to dispense with the personal attendance of the respondent/husband herein i.e. the petitioner in F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District, before the transferee Court. --

•s--, ^ V6KR, J Dated 20.06.2025

9. In the result, the Transfer Civil Miscellaneous Petition is allowed and F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District, is hereby withdrawn and transferred to the Judge, Family Court at Eluru, West Godavari District. The learned XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District, shall transmit the case record in F.C.O.P.No.199 of 2025, to the Judge, Family Court at Eluru, West Godavari District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. Further the personal attendance of the respondent/husband i.e., the petitioner in F.C.O.P.No.199 of 2025 on the file of the XIV Additional District and Sessions Judge-cum-Principal Family Judge, Vijayawada, Krishna District, has been dispensed with before the transferee Court i.e.. Judge, Family Court at Eluru, West Godavari District. Both the parties are directed to appear before the Judge, Family Court at Eluru, West Godavari District, on 30.07.2025, at 10.30 a.m. Later the Judge, Family Court at Eluru, West Godavari District, is instructed not to insist for the personal appearance of the respondent herein i.e., the petitioner in F.C.O.P.No.199 of 2025, as long as his counsel is attending the Court proceedings and representing the case except on the day when re-conciliation proceedings are being taken up or on the day when his cross-

examination is required to be recorded or on any other day when his personal VGKR.J Tr.C.M.P.No.113 of 2025 Dated 20.06.2025 appearance is required as directed by the learned Judge, Family Court at Eluru, West Godavari District. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

Sd/- N NAGAMMA ASSISTANT REGISTRAR //TRUE COPY// SECTION OFFICER To

1. The XIV Additional District and Sessions Judge -cum- Principal Family Judge, Vijayawada, Krishna District
2. The Judge, Family Court, Eluru, west Godavari District
3. One CC to M/s Nimmagadda Revathi, Advocate [OPUC]
4. One CC to Sri P.Srinivas, Advocate [OPUC]

5. Gogineni Naga Venkata Satya Pavani, W/o Lakshmi Prasad, aged 40 years. Housewife R/o D.No.8-6-12/1, Benaraju Peta, Eluru Eluru District, Erstwhile West Gpdavari District.

6. Gogineni Lakshmi Prasad @ Babi, S/o Gopiaia Rao, R/o D. No. 1-63,P urushothapatnam, Gannavaram Mandal, Krishna District.

7. Three CD Copies MV vna \ HIGH COURT \ \ DATED: 20/06/2025 \ ORDER ALLOWING THE Tr.CMP